title	HOA, HOPA and Covenant Outline — The Cottages at Arcado Springs
date	2026-09-03
address	4535, 4537, 4539 & 4541 Arcado Rd SW, Lilburn, GA 30047 — Land Lot 123, 6th District, Gwinnett County (PINs R6123 033 / 015 / 014 / 162)
status	DRAFT — NOT SEALED, NOT LEGAL ADVICE. An outline of a legal instrument prepared by the owner-applicant. Every substantive paragraph flagged [ATTORNEY REVIEW REQUIRED] must be drafted, redlined and issued by a Georgia land-use or community-association attorney before recording.
generator	tools/hoa_budget.py (all budget quantities and totals; outputs data/hoa-budget-derived.json and verify/hoa-budget-output.md)

13 — HOA, HOPA and Covenant Outline

What this document is. The City of Lilburn is being asked to rezone R-1 → R-2 in reliance on eighteen voluntary conditions (`data/voluntary-conditions.md`, offered under Lilburn Zoning Ordinance, Ord. 2023-603, §1003-4(5)). Five of those conditions — the 55+ restriction, the 20-ft buffer, the fire-sprinkler offer, the stream-buffer preservation and the HOA maintenance obligation — are promises about how the community will be *operated for the next fifty years*, and a zoning condition alone does not operate anything. The instrument that does is a recorded Declaration of Covenants, Conditions, Restrictions and Easements. This document is the outline of that Declaration: what each article must do, who performs each obligation, on what cycle, on what record, and what it costs. It ends with a line-item annual budget for the association at full build-out.

What this document is not. It is not the Declaration, and no sentence in it should be recorded as written. It is an owner-prepared outline whose purpose is (a) to let the Planning Director and the City Attorney see that the voluntary conditions have a real enforcement mechanism behind them, and (b) to give the community-association attorney a complete scope so the drafting is one engagement rather than three.

Conventions.

- **[ATTORNEY REVIEW REQUIRED]** marks every paragraph where operative legal language must be drafted by

counsel. It is not a formality: the paragraphs so marked are the ones that decide whether the covenant is enforceable.

- **VERIFY** marks a fact or a decision that is still open.
- Statutory citations carry the code and section. Ordinance citations carry the ordinance number and section

("Lilburn Zoning Ordinance 2023-603 §402-1"). Code citations carry the edition ("IFC 2024 (GA) Appendix D103.4"). Nothing here asserts legal compliance; the strongest statement made is "appears consistent with".

- Areas are stated in SF with the area type; dimensions use architectural notation (`20'-0"`).
- Every dollar figure in §8 is computed by `tools/hoa_budget.py` from `data/layout.json` and `data/plans.json`;

no figure is typed in by hand.

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1. The enforcement map — which instrument carries which promise

The eighteen voluntary conditions in `data/voluntary-conditions.md` are reproduced verbatim in the Letter of Intent (`docs/03` §11). This table says where each one actually lives after the hearing.

#	Voluntary condition	Zoning condition (City-enforced)	Declaration article	Plat / other recorded instrument
1	Age restriction (HOPA 55+)	Yes — the operative promise	**Art. 4**	Plat note; deed reference
2	Maximum units (≤ 47; **41** shown)	Yes	Art. 2 (property subject)	Final plat lot count
3	Height — 1 story, ridge ≤ 24 ft	Yes	Art. 8	—
4	Buffers — 20 ft undisturbed, easement	Yes	**Art. 5**	Buffer easement on plat; deed reference
5	Fire sprinklers (NFPA 13D, offered voluntarily)	Yes, with the release mechanic	**Art. 7**	—
6	Single access, no gate	Yes	Art. 6	Plat (one entrance)
7	No Arcado Road driveways	Yes	Art. 8	Plat note — no access easement to Arcado
8	Architectural standards, colours, no wall signs	Yes	Art. 8	—

#	Voluntary condition	Zoning condition (City-enforced)	Declaration article	Plat / other recorded instrument
9	Stream buffer preserved in a common tract	Yes	Art. 5 §5.9	Plat — 25/50/75-ft lines, creek-woods tract
10	HOA maintenance of lane, walks, ponds, buffers, yards	Yes	**Art. 6**	Plat note (private maintenance) per Site Development Plan Review Checklist §4.o
11	Lighting — full cut-off ≤ 3000 K, no court lighting	Yes	Art. 6, Art. 8	Street-lighting plan at LDP
12	Construction hours	Yes — construction-phase only	Art. 8 (declarant + owners)	—
13	Tree survey and preservation	Yes — LDP-stage	Art. 5, Art. 6	Tree preservation plan
14	Entry sign — one monument ≤ 32 SF	Yes	Art. 6, Art. 8	Sign easement if required (checklist §4.q)
15	Phasing at u ≈ 1,000 ft	Yes	Art. 2 (annexation)	Supplemental Declaration for Phase 2
16	Sanitary sewer — gravity only, no private pumping	Yes — the hard one	Art. 6 §6.8 (a prohibition, not an obligation)	Off-site sewer easement, recorded
17	Level-1 TIS, sight-distance certification, DOT permit	Yes — pre-LDP	—	—
18	Sidewalks and transit cooperation	Yes	Art. 6	Plat

Conditions 12, 15, 16 and 17 are **developer** obligations that are performed and exhausted before the last home is sold; they belong in the zoning conditions and should not be written as perpetual covenants running against 41 individual homeowners. Conditions 1, 4, 5, 8, 10 and 11 are **perpetual operating** obligations and must be in the Declaration, because that is the only document that binds the 41st owner in 2076. **[ATTORNEY REVIEW REQUIRED]** — the allocation in the last two columns is a drafting judgement and should be confirmed against the conditions as finally adopted by the City Council.

2. The instrument set and the Georgia legal framework

2.1 Documents to be produced

#	Instrument	Recorded?	Who prepares	When
1	Declaration of Covenants, Conditions, Restrictions and Easements	Yes — Gwinnett County Superior Court deed records	Community-association attorney	Before the first lot is conveyed and before the first building permit (voluntary condition)
2	Articles of Incorporation, The Cottages at Arcado Springs Homeowners Association, Inc.	Filed with the Georgia Secretary of State	Attorney	Before the Declaration
3	Bylaws	No (attached as an exhibit)	Attorney	With the Declaration
4	Architectural and Landscape Guidelines	No — Board-adopted, amendable	Declarant, then ACC	With the Declaration
5	**HOPA Policies and Procedures** (the §100.306 "published policies")	No — published and posted	Attorney + manager	With the Declaration
6	Occupancy Certificate, Age Affidavit and Biennial Survey forms	No	Attorney	With the Declaration
7	Buffer Easement (within the Declaration, plus a plat easement and a deed recital)	Yes	Attorney + surveyor	With the plat
8	Storm Water BMP Maintenance Agreement with as-built hydrology, volume certification, maintenance schedule, access easement, inspection report and 18-month maintenance bond	Yes — "Originals to be recorded by applicant with Clerk of Court"	PE + attorney	Site Development Plan Review Checklist §2.g.3, at the Certificate of Development Conformance stage
9	Off-site sanitary sewer easement (Phase 2)	Yes	Attorney	Before the Phase-2 LDP (voluntary condition 16)
10	Supplemental Declaration annexing Phase 2	Yes	Attorney	At the Phase-2 final plat
11	Consent and Subordination of any mortgagee	Yes	Lender's counsel	With the Declaration

2.2 Georgia framework

- **Georgia Property Owners' Association Act, O.C.G.A. §44-3-220 et seq. (Article 6, §§44-3-220 – 44-3-235).**

The Declaration should **expressly submit the property to the POA Act**. The Act is opt-in; a declaration that does not say so creates a common-law association with materially weaker remedies. Three consequences matter here:

1. **Perpetual covenants.** O.C.G.A. §44-3-234 disapplies the twenty-year limitation that O.C.G.A.

§44-5-60 otherwise places on covenants restricting land to specified uses. A 55+ restriction and a buffer easement that expire in 2046 would be worthless to the City; submission to the Act is what makes them perpetual. **This is the single most important drafting decision in the instrument.**

2. **Automatic statutory lien.** O.C.G.A. §44-3-232 gives the association a lien for assessments without

separately filing it, together with late charges, interest, costs of collection and reasonable attorney's fees actually incurred. The section also carries limits the budget must respect: no foreclosure unless the lien is at least $2,000.00; the lien lapses four years after the assessment first became due; and a written statement of amounts due must be furnished within five business days of a request or the lien is extinguished as to the requesting party.

3. **Amendments bind non-voting owners.**

- **Georgia Nonprofit Corporation Code, O.C.G.A. §14-3-101 et seq.** — the association is a Georgia nonprofit

membership corporation; annual registration with the Secretary of State; a registered agent; director indemnification, which the D&O policy in §8 backs.

- **Federal Fair Housing Act, 42 U.S.C. §3601 et seq.**, and the housing-for-older-persons exemption at

42 U.S.C. §3607(b)(2)(C), implemented at **24 CFR Part 100, Subpart E, §§100.300–100.308**.

- **Georgia Fair Housing Act, O.C.G.A. §8-3-200 et seq.** — the state analogue, enforced by the Georgia

Commission on Equal Opportunity. **VERIFY with counsel which state section carries the older-persons exemption and whether its terms differ from the federal rule**; the Declaration must satisfy both.

- **Federal statutes that override covenants** and must therefore be written into the use restrictions rather

than discovered later: the Freedom to Display the American Flag Act of 2005 (P.L. 109-243) and the FCC over-the-air-reception-devices rule, 47 C.F.R. §1.4000 (satellite antennas).

[ATTORNEY REVIEW REQUIRED] — §2.2 states the framework the outline assumes. Counsel must confirm every section number, the current text of the POA Act after the most recent General Assembly session, and whether any 2025–2026 amendment affects rental restrictions, fining procedure or reserve disclosure.

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3. Article 4 — Housing for Older Persons (the 55+ program)

3.1 The exemption claimed, and the arithmetic

The community claims the "55 or older" exemption from the familial-status provisions of the Fair Housing Act under 42 U.S.C. §3607(b)(2)(C) and 24 CFR §100.304. Under 24 CFR §100.304(a)(2) that exemption requires the community to satisfy **all three** of §100.305 (80 percent occupancy), §100.306 (intent) and §100.307 (verification of occupancy). 24 CFR §100.304(b) confirms that a subdivision "governed by a common set of rules, regulations or restrictions" — here, the Declaration — is a "housing facility or community" for this purpose, and expressly includes property "governed by a homeowners' association".

Input	Value	Source
Dwelling units at full build-out	**41**	`data/layout.json` metrics.lots (2026-09-03 layout; the count fell from 43 when every lot was screened against all three digitised stream reaches and the basins were re-sized on 7.54 disturbed acres)
Statutory threshold	80 % of occupied units with at least one occupant 55 or older	24 CFR §100.305(a)
0.80 × 41	32.8 units	arithmetic
Fractional-unit rule — the fraction counts **into** the required number	round **up**	24 CFR §100.305(g)
Minimum qualifying units at full occupancy	**33 of 41**	derived (`data/dev-summary-derived.json hopa_units_needing_55plus`)
Cushion available for non-qualifying occupancy	8 units	41 – 33 (`hopa_units_without_55plus_cap`)

Input	Value	Source
Covenant cap on Board-granted Exception Occupancies (recommended)	**6 units**	leaves a 2-unit margin for error and for units in transition
New-construction grace	the 80 % test does not apply "until at least 25 percent of the units are occupied" — 25 % × 41 = 10.25 → **11 units**	24 CFR §100.305(d)

What the drop from 43 units changed. The required number of qualifying units falls from 35 to **33**; the cushion of units that need not house a person 55 or older is **unchanged at 8**, because 0.80 × 43 = 34.4 → 35 (cushion 8) and 0.80 × 41 = 32.8 → 33 (cushion 8). The recommended Exception-Occupancy cap of six units therefore still leaves the same two-unit margin, and no covenant mechanic in this article needs to change — only the number stated in it.

Voluntary condition 1 was conformed on 2026-09-03 and now reads "**at least 33 of the 41 units** … leaving at most 8 units that need not be", and requires the figure to be recomputed if the unit count changes (`data/voluntary-conditions.md` condition 1, generated from `docs/02` §9). At the condition-2 ceiling of 47 units the figure becomes 0.80 × 47 = 37.6 → **38 of 47**, and the Declaration must state it that way — as a formula tied to the then-current unit count, not as a frozen number.

3.2 The occupancy covenant

[ATTORNEY REVIEW REQUIRED]. Outline of the operative provisions:

1. **Community intent.** The Property is intended and operated as housing for persons 55 years of age or older within the meaning of 42 U.S.C. §3607(b)(2)(C) and 24 CFR §§100.304–100.308, and every Owner takes title subject to that intent.
2. **The rule stated affirmatively.** Every occupied Dwelling shall have at least one Occupant who is 55 years of age or older ("a Qualifying Occupant"). The covenant states 100 percent, not 80 percent; the 20 percent cushion is not a right of any Owner, it is administrative headroom held by the Association.
3. **Exception Occupancies.** The Board may grant a written, revocable Exception Occupancy for a Dwelling without a Qualifying Occupant only (a) while the number of Exception Occupancies plus vacant non-qualifying units is at or below the cap in §3.1 (six units at 41 dwellings), (b) for a stated term not exceeding twelve months, renewable, and (c) on written findings recorded in the minutes. The Board **shall** deny any request that would take the community below the §100.305(a) threshold, and no estoppel, waiver or course of dealing creates a right to renewal.
4. **Minimum age of other occupants.** No person under the age of 19 shall be a permanent Occupant. **[ATTORNEY REVIEW REQUIRED]** — a community that qualifies under §100.304 is exempt from the familial-status provisions, and 24 CFR §100.306(d) confirms a qualifying community *may* nonetheless allow families with children; but the exemption does not touch the disability, race, colour, religion, sex, national origin or Georgia-law protections, and a flat minor-occupancy ban must be drafted with an express reasonable-accommodation carve-out and a guest policy (a suggested guest limit is 60 days in any twelve-month period).
5. **No discrimination on any other ground**, and a statement that the Association will make reasonable accommodations and permit reasonable modifications under 42 U.S.C. §3604(f).

3.3 Who verifies, how often, and what record is kept

24 CFR §100.307(b) requires the community to "develop procedures for routinely determining the occupancy of each unit", including whether at least one occupant is 55 or older, and §100.307(c) requires those procedures to be updated "at least once every two years". The Declaration and the HOPA Policies should assign that work concretely:

Who	Role	Instrument
The Board of Directors	Adopts and annually re-adopts the HOPA Policies and Procedures; grants or denies Exception Occupancies; is the "authorized representative" that certifies in writing under 24 CFR §100.308(b)(2)–(3)	Declaration Art. 4; Bylaws
The HOPA Administrator — a named officer of the Association, in practice the community manager under the management agreement	Collects and files Occupancy Certificates and age documentation; maintains the Occupancy Register; runs the biennial survey; issues transfer eligibility letters; reports to the Board quarterly	HOPA Policies §2; management agreement scope
Counsel	Reviews the survey form, the affidavit and the published policies on a three-year cycle	Budget line, §8
The Owner	Delivers a completed Occupancy Certificate and age documentation at every closing, at every lease, and within 30 days of any change in occupancy	Declaration Art. 4

The record. The Association maintains an **Occupancy Register** — one row per Dwelling: unit address, lot number, the name of every Occupant, whether at least one Occupant is 55 or older, the date and type of the document relied on, the date of the most recent survey, and whether an Exception Occupancy is in force. From that register the Association derives, at each 31 March of an odd-numbered year, the **Occupancy Summary**: occupied units, qualifying units, the percentage, and the §100.305(a)/(g) minimum for the then-current unit count.

Acceptable documentation is that listed in 24 CFR §100.307(d): a driver's licence, birth certificate, passport, immigration card, military identification, "comparable official document", or "a certification in a lease, application, affidavit, or other document signed by any member of the household age 18 or older" asserting that at least one occupant is 55 or older. 24 CFR §100.307(e) makes any form adequate if it contains "specific information about current age or date of birth". The Association's practice should be to **record the document type and expiry, not to retain a photocopy of the identity document**, to limit its data-breach exposure — **[ATTORNEY REVIEW REQUIRED]**, because §100.307(a) also requires the community to be able to produce verification "in response to a complaint", and counsel must decide the retention rule that satisfies both.

Refusal to co-operate. 24 CFR §100.307(g) permits the community to rely on government records or public documents, prior forms or applications, or a statement signed by a person with personal knowledge, where an occupant refuses to complete the survey. The HOPA Policies should adopt that hierarchy verbatim rather than treating a refusal as a fatal gap.

Cycle. Occupancy Certificates at closing and at each lease; a 30-day change-of-occupancy report; the **Biennial Occupancy Survey mailed on or before 1 February and closed on 31 March of each odd-numbered year**, which satisfies §100.307(c) with a margin; the Occupancy Summary and the §100.308(b)(2) certification adopted at the annual meeting; the summary "available for inspection upon reasonable notice and request" as §100.307(i) requires; records retained for not less than seven years.

3.4 Published policies and demonstrated intent (24 CFR §100.306)

24 CFR §100.306(a) requires published policies and procedures that "demonstrate the intent" to operate as 55+ housing, and lists the factors HUD weighs: the manner in which the community is described to prospective residents (a)(1); advertising (a)(2); lease provisions (a)(3); "written rules, regulations, covenants, deed or other restrictions" (a)(4); the maintenance and consistent application of the procedures (a)(5); the actual practices of the community (a)(6); and "public posting in common areas of statements describing the facility or community as housing for persons 55 years of age or older" (a)(7). The Declaration should therefore require:

- The recorded Declaration itself (factor (a)(4)) — a plat note and a recital in every deed.
- A **posted statement** in the clubhouse and at the mail kiosk (factor (a)(7)), in the form set out in the HOPA Policies.
- **Marketing discipline**: every advertisement, sign, website page and brochure describes the community as "housing for persons 55 years of age or older" (factor (a)(2)). 24 CFR §100.306(b) states that phrases such as "adult living" or "adult community" are **inconsistent** with the intent to operate as 55+ housing; voluntary condition 1 already prohibits them. The Declaration should bind the declarant, the builder, every listing agent and the Association to that vocabulary. This is the single most common way communities lose the exemption, and it costs nothing to avoid.
- **Consistent application** (factors (a)(5) and (a)(6)): the Board "shall", not "may", enforce Article 4; a failure to enforce is itself a breach of the zoning condition and of the Declaration.

3.5 Transfer, resale and leasing

[ATTORNEY REVIEW REQUIRED]. Outline:

1. **Notice before closing.** A selling Owner gives the Association written notice not fewer than 30 days before closing, with the purchaser's name and the proposed Occupants.
2. **Purchaser's package.** The purchaser delivers a signed Occupancy Certificate, age documentation per §100.307(d), and an acknowledgement of Articles 4, 5, 7 and 8 (55+, buffer, sprinklers, architectural and parking rules).
3. **Association's response within 10 business days**: an **Occupancy Eligibility Letter** (or a written refusal stating the ground), issued together with the statement of amounts due that O.C.G.A. §44-3-232 requires within five business days of request.
4. **No right of first refusal, no approval of the purchaser.** The Association verifies *occupancy*, not the buyer; a right of first refusal would complicate lending and is not needed for HOPA.
5. **A closing that proceeds without the letter is a violation** enforceable against the Owner by fine,

injunction and lien, but **does not void the deed or affect the title** — a non-forfeiture clause is essential for title insurance and for secondary-market eligibility.

6. **Leasing.** Minimum term 12 months; no short-term or transient rental; the tenant household must include

a Qualifying Occupant unless the Board grants an Exception Occupancy; the lease is subordinate to the Declaration and the Association may enforce directly against the tenant; a leased-unit cap (a suggested 15 percent — six Dwellings at 41, since 0.15 × 41 = 6.15) protects both HOPA administration and lender eligibility. **[ATTORNEY REVIEW REQUIRED]** — rental restrictions in Georgia are sensitive to how and when they are adopted; imposing them in the original declarant-drafted Declaration, before any lot is conveyed, is far safer than amending them in later.

3.6 Inherited units, surviving occupants and hardship

This is the question the City will ask and the question every buyer's family will ask.

Event	Rule the Declaration should adopt
The sole Qualifying Occupant dies or moves permanently, and a spouse or co-Occupant under 55 remains	The surviving co-Occupant, if he or she was in lawful occupancy on that date, **may remain for life**, counted as an Exception Occupancy against the cap in §3.1. This is the humane rule and the market expects it.
A Dwelling passes by will or intestacy to an heir under 55	The heir **may own** the Dwelling — the Declaration restricts occupancy, not ownership — but may not occupy it. The heir shall, within **12 months** of the date of death (the Board may extend once by 6 months for good cause), either convey the Dwelling or lease it to a household with a Qualifying Occupant.
An Owner requires a live-in caregiver under 55	Permitted as a reasonable accommodation on written request with medical certification; the caregiver is not an Owner and acquires no occupancy right that survives the Owner.
Hardship (illness, deployment, job loss, a house that will not sell)	The Board may grant a time-limited Exception Occupancy within the cap, on written findings.
The cap is full	The Board **shall** refuse; the applicant's remedy is to sell or lease. The Declaration should say plainly that the 80 percent test is a community asset that no individual owner may consume.

The Association's obligation on learning of a death or a change in occupancy is to update the Occupancy Register within 30 days and to notify the Owner or personal representative in writing of the twelve-month clock. **[ATTORNEY REVIEW REQUIRED]** — the interaction of these rules with Georgia probate practice, with a surviving spouse's year's support (O.C.G.A. §53-3-1 et seq.), and with a lender in possession after foreclosure must be drafted expressly.

3.7 Violation and remedy

Notice of violation → 30-day cure period → hearing before the Board on request → daily fine at a rate fixed in the Bylaws → suspension of amenity privileges (never of access to the Dwelling or of the yard-care service the Owner pays for) → action for injunction and specific performance → costs and attorney's fees actually incurred → the O.C.G.A. §44-3-232 lien for the sums charged. For a violation that puts the exemption itself at risk — an occupancy that would take the community below 33 qualifying units — the Declaration should authorise the Association to seek **immediate injunctive relief without exhausting the fine schedule**. **[ATTORNEY REVIEW REQUIRED]** — fining authority and the required notice-and-hearing procedure must track the POA Act and the Bylaws exactly, or the fines are uncollectable.

3.8 The good-faith certification and the City's annual letter

24 CFR §100.308 gives a person a defence against personal liability for civil money damages where he had actual knowledge that the community "has, through an authorized representative, asserted in writing that it qualifies", and where the community has certified "in writing and under oath or affirmation" that it satisfies the 55+ requirements. The Declaration should therefore require:

- an **annual written certification under oath**, adopted by the Board and signed by the President as the

authorized representative (§100.308(b)(3)), retained in the records and furnished on request to any Owner, purchaser, lender, listing agent or closing attorney; and

- an **annual HOPA certification letter to the City of Lilburn Planning Director**, on or before 30 April, attaching

the Occupancy Summary for the most recent survey, so that the City can confirm voluntary condition 1 is being performed without having to ask. This costs the association one letter a year and is the cheapest possible answer to "how would the City ever know?".

4. Article 5 — the buffer easement (the instrument the lot yield rests on)

4.1 Why this article exists

Lilburn Zoning Ordinance 2023-603 **§313(1)** provides that buffer requirements "supersede these minimum required yards". Reading §313(1) together with Table 4.1 (cottage home: minimum lot size 3,000 SF, minimum lot width 50 ft, **minimum lot depth 100 ft, all uses**; 20-ft buffer abutting R-1 for dwelling types other than detached single-family) is what allows a 20-ft undisturbed buffer to lie **inside** the rear 20 ft of a lot instead of in a separate tract. The cross-section is:

> *100.0 ft lot depth + 35.9 ft minimum lane tract + 100.0 ft lot depth = **235.9 ft** against a strip width of **236.0 ft** measured across the first lot row (u ≈ 255 ft) — a margin of about **0.1 ft (1-1/4 in)**.*

(Lane tract width 35.9 ft minimum / 46.1 ft maximum from `data/layout.json` `metrics.lane_tract_width_ft_min` and `_max`; the 236.0-ft strip width is the cross-strip distance between the southwest and northeast boundary courses of `data/layout.json boundary_ring` at the mid-station of Lot 1, and the strip widens to about 241.3 ft at the last lot row. **The margin is tighter than the 0.6 ft this document reported at 43 lots** — the 2026-09-03 layout carries a 35.9-ft minimum lane tract rather than 35.4 ft. The RLS boundary survey governs, and if the survey returns a width below 235'-11" at any lot row the section must be re-cut before the plat. Decimal feet are used in this paragraph because that is how the dimension is carried in the layout data; the plat will state it in feet and inches.)

If the buffer cannot lie inside the lots, lot depth falls to roughly 82 ft, below the Table 4.1 minimum of 100 ft, and every lot needs a §1005 variance. **The buffer easement is therefore not a landscaping detail; it is the consideration the applicant offers for the §313(1) reading, and it must be drafted as if the whole 41-lot plan depends on it, because it does.**

Quantities: **41,000 SF (0.94 ac) of buffer easement inside lots** — 41 lots × 50'-0" × 20'-0" (`data/layout.json metrics.buffer_easement_on_lots_sf`) — plus the buffer where it runs through common tracts. This 41,000 SF is **not** counted in the **141,089 SF (3.24 ac; 33.8 percent of the 9.577-ac GIS area, 34.3 percent of the 9.44-ac deeded area)** of common open space shown on Sheet C-2.0; it is additional.

4.2 The grant

[ATTORNEY REVIEW REQUIRED]. Outline:

1. **Reservation, not later grant.** The Declarant **reserves** the Buffer Easement over the rear 20'-0" of

each Lot at the time the Declaration is recorded, before any Lot is conveyed, so that no Owner ever takes title free of it and no joinder of Owners is ever needed.

2. **Area.** "The Buffer Easement Area" = that portion of each Lot lying within 20'-0" of the rear Lot line

as shown and dimensioned on the recorded final plat, together with the buffer strips within the Common Property. The plat, not the Declaration's prose, fixes the geometry.

3. **Grantees.** The Association **and the City of Lilburn**, the City taking as a grantee and third-party

beneficiary with an **independent right of enforcement** that does not depend on the Association acting first, and that survives any failure, dissolution or insolvency of the Association.

4. **Character.** Perpetual; running with the land; binding on and benefiting successors; **not extinguished

by merger** of the dominant and servient estates; not subject to abandonment by non-use; not terminable by the expiration of any covenant term (see O.C.G.A. §44-3-234, §2.2 above).

5. **Form question — [ATTORNEY REVIEW REQUIRED].** Counsel must choose between (a) a **restrictive covenant

and easement in gross in favour of the City**, and (b) a** conservation easement under the Georgia Uniform Conservation Easement Act, O.C.G.A. §44-10-1 to §44-10-8**, which requires a qualified holder (a governmental body or a charitable organisation — the City can qualify) and carries its own consequences for enforcement, tax treatment, amendment and the holder's monitoring duty. Option (a) is the lighter instrument and is what voluntary condition 4 contemplates ("a recorded buffer/conservation easement"); option (b) is harder to dissolve and reads more strongly to a hearing body.** Do not leave the phrase "buffer/conservation easement" undefined in a recorded document** — the two are different instruments.

4.3 Prohibitions

Within the Buffer Easement Area, no Owner, Occupant, guest, contractor, the Association or the Declarant shall:

1. cut, clear, mow to turf, girdle, poison, top or remove any tree, shrub or understory vegetation, except as

§4.4 permits;

2. grade, fill, excavate, stockpile, or alter drainage or existing contours;
3. erect, place or maintain any **structure** — including a shed, greenhouse, playset, gazebo, pergola, deck,

patio, pool, hot tub, firepit, HVAC condenser, generator, satellite antenna, clothesline, flagpole footing or dog run;

4. erect or maintain any **fence**, wall or hedge planted as a fence;

5. place any **impervious surface**, walkway, paver, gravel or artificial turf;
6. store vehicles, boats, trailers, building materials, firewood, compost or yard waste;
7. discharge roof drains, sump pumps, irrigation or pool water into the area;
8. apply herbicide (other than targeted treatment of invasive species under an approved plan), or dump grass clippings, leaves or soil;
9. install lighting other than the shielded fixtures approved under voluntary condition 11;
10. take any other action inconsistent with the "undisturbed" character the buffer must have to satisfy Lilburn Zoning Ordinance 2023-603 Table 4.1 and §313(1).

4.4 What is permitted

- **Approved pond and utility encroachments** not exceeding 50 ft in perpendicular width, as voluntary condition 4 and the Site Development Plan Review Checklist allow, as shown on the approved plans.
- **The single buffer reduction disclosed in the Letter of Intent §5** — the southwest curb return of the entrance, where the 20'-0" buffer is reduced by **2'-0"**, to a residual width of **18'-0"**, at the return's tangent point on the Arcado Road right-of-way line. The plan area of the encroachment is **0.1 SF** (`data/layout.json` `metrics.sw_curb_return_buffer_encroachment_ft` = 2.0 and `metrics.sw_curb_return_buffer_encroachment_sf` = 0.1; 15'-0" southwest return radius). **This supersedes the 17'-11" this document previously carried.** Voluntary condition 4 was conformed on 2026-09-03 and now states the same figure — "the buffer narrows to a minimum of 18'-0" instead of 20'-0", a reduction of 2.0 ft measured along the right-of-way affecting 0.1 SF of pavement" — so the recorded easement, the zoning condition and the drawing will say one thing. **Letter of Intent §5 must be checked against that wording before filing**; a document and a drawing that state different residual widths is exactly the contradiction the completeness audit called a filing defect. No other reduction is authorised, and the Declaration should say so, so that the recorded instrument and the zoning conditions cannot drift apart.
- **Removal of a dead, diseased or hazardous tree** on the written opinion of an ISA-certified arborist, with replacement at not less than one tree for one within the same growing season.
- **Invasive-species management** under a written plan approved by the Board (English ivy, privet, kudzu, wisteria, autumn olive), by hand or by targeted treatment, with no soil disturbance.
- **Supplemental evergreen planting** to thicken the screen where existing vegetation is sparse (voluntary condition 4), at the rate used for the buffer concept: approximately **one evergreen per 8–10 lineal ft of mapped gap plus one canopy tree per 30–40 lineal ft** (`docs/12` §32 93 00 ¶2.03).
- **Access by the Association, the City and utility providers** for inspection, maintenance and emergency work.

4.5 Marking, plat notes and disclosure

- **Permanent buffer markers** — cast or engraved posts reading "BUFFER EASEMENT — DO NOT DISTURB — CITY OF LILBURN" — set by the Declarant at every point where the buffer line meets a side Lot line and at intervals not exceeding 50 ft, and maintained by the Association in perpetuity. Markers are what make the covenant enforceable against a new owner with a chainsaw who never read the Declaration.
- **Plat note** on the final plat, dimensioning the 20'-0" easement on every Lot and reciting the Declaration book and page and the zoning case number.
- **Deed recital** in every deed from the Declarant and a covenant requiring the same recital in every subsequent deed.
- **Resale disclosure**: the Buffer Easement is described in the Occupancy Eligibility Letter package (§3.5) and in the Association's resale certificate, with a plat excerpt for the specific Lot.

4.6 Enforcement and the re-planting remedy

[ATTORNEY REVIEW REQUIRED]. The remedy, not the prohibition, is what a land-use attorney will test:

1. **Inspection.** The Association shall inspect the entire Buffer Easement Area not less than **annually** and after any land-disturbing activity on a Lot, and shall photograph and log each inspection.
2. **Notice and cure.** Written notice of violation to the Owner; **10 days** to stop active disturbance;

90 days to complete restoration.

3. **Restoration standard** (stated in the Declaration so that no negotiation is needed later): replant to a density of not less than **one canopy tree of 2-in caliper minimum per 400 SF disturbed** and **one evergreen of 6-ft minimum height per 8 lineal ft of disturbed buffer frontage**, restore the ground layer and any altered grade, and warrant the replacement plantings for **24 months** (the Site Development Plan Review Checklist §6.m requires a 12-month warranty of new planting; the covenant doubles it because this planting is a remedy, not an installation).
4. **Self-help.** If the Owner does not perform, the Association **shall** enter, perform the work, and charge the cost, plus 15 percent administration and attorney's fees actually incurred, to the Owner as a **specific assessment** secured by the O.C.G.A. §44-3-232 lien.
5. **The City's independent remedy.** The City may enforce the easement directly against the Owner and against the Association — by citation for violation of the zoning condition, by withholding permits and certificates of occupancy on the affected Lot, and by action for injunctive relief — without first demanding that the Association act.
6. **No waiver.** Failure to enforce in any instance is not a waiver as to any other, and no violation is cured by lapse of time.
7. **Reserve funding.** The Landscape renovation and buffer re-planting component in the reserve schedule (§8.3) is the fund that stands behind items 3 and 4 when the violator is unknown or a storm is the cause.

4.7 Amendment lock

No amendment, release, relocation, subordination or termination of Article 5, or of the corresponding plat easement, shall be effective without the **prior written consent of the City of Lilburn**, and any purported amendment without that consent is void. The same lock applies to Article 4 (55+), Article 7 (sprinklers) and the provisions of Articles 6 and 8 that carry a zoning condition. **[ATTORNEY REVIEW REQUIRED]** — the lock must be drafted so that it binds a future 67 percent supermajority of owners under the POA Act amendment provisions, which is precisely the case the City is worried about.

4.8 If the City requires the buffer in a separate tract

The fallback is already identified in `FACTS.md` §3: 50'-0" × 82'-0" lots (4,100 SF, above the 3,000-SF Table 4.1 minimum) with a concurrent §1005 variance on lot depth. The Declaration should be drafted so that this conversion is possible without re-platting every Lot — a reserved right in the Declarant, during the period of Declarant control, to convey the Buffer Easement Area into a Common Property tract and to record a corresponding plat revision, at the Declarant's cost. **[ATTORNEY REVIEW REQUIRED].**

4.9 Stream buffer (voluntary condition 9)

The stream head and its 50-ft undisturbed buffer and 75-ft impervious setback sit in a **20,000-SF common "creek woods" tract** owned by the Association, not in any Lot. The Declaration should carry the same prohibition list as §4.3, the same City third-party enforcement, and the plat should show the 25-ft state buffer under O.C.G.A. §12-7-6(b)(15) and the 50-ft and 75-ft city lines separately, as voluntary condition 9 requires. No Owner has any right to clear, mow, garden or build in the creek woods.

5. Article 6 — common property, the private lane, stormwater and landscape

5.1 What the Association owns and maintains

Common Property tract	Area	Association obligation
Lane tract (private street, 22'-0" pavement in a 35.9–46.1-ft tract, widening to 60'-0" through the amenity block)	71,085 SF	Own in fee; maintain pavement, curb, walk, signs, striping, lighting, drainage
Front amenity tract (clubhouse, village green, 2 pickleball courts, guest parking bay, mail-kiosk bay, mail kiosk, entry sign, 10-ft landscape strip)	46,777 SF	Own, operate, insure, maintain
Pocket green (u 530–580)	10,000 SF	Own, mow, maintain
Pocket green (u 1,080–1,130)	10,000 SF	Own, mow, maintain
Terminus green + rear buffer	9,312 SF	Own, mow, maintain
Pond 1 tract (dry detention / water quality)	20,000 SF	Own; inspect, mow, clean, remove sediment
Pond 2 tract (dry detention / water quality)	20,000 SF	Own; inspect, mow, clean, remove sediment

Common Property tract	Area	Association obligation
Creek woods (stream head + 50/75-ft buffers), preserved	20,000 SF	Own; leave undisturbed; invasive management only
Stream-setback open-space tract (SW side, u 1,230–1,280) — unlotted, no impervious	5,000 SF	Own; leave undisturbed. **New tract:** this is the lot that was removed on 2026-09-03 when every lot was screened against all three digitised stream reaches
Common open space total	**141,089 SF = 3.24 ac = 33.8 % of the 9.577-ac GIS area (34.3 % of 9.44 ac deeded)**	the eight tracts enumerated above sum **exactly** to the published metric (`data/layout.json open_space_summary`), so the 201-SF residual this document reported at 43 lots is closed
Buffer easement within the 41 Lots (additional, not counted above)	41,000 SF	Enforce Art. 5; inspect annually
Yard maintenance on 41 Lots (voluntary condition 10)	≈ 1,294 SF of maintained yard per Lot (Plan A 1,365 SF / Plan B 1,220 SF)	Mow, edge, trim, blow, prune, mulch, leaf removal

(Areas from `data/layout.json` `open_space_tracts` and `metrics`; per-Lot maintained yard = 5,000 SF lot – per-Lot impervious from `data/plans.json` `lot_siting` – 1,000 SF of buffer easement.)

The Declaration must grant the Association an **easement over each Lot** for the yard-care service, for inspection of the buffer and the sprinkler system, and for maintenance of anything the Owner fails to maintain, on reasonable notice except in an emergency.

5.2 The private lane — no dedication, and the standard

- The lane is **private in perpetuity**. The plat carries the note the Site Development Plan Review Checklist

§4.o and §4.s require — new streets labelled "Private", public and private maintenance responsibilities noted on the concept, preliminary and final plats — and a statement that the City and Gwinnett County accept no maintenance obligation.

- Lilburn Zoning Ordinance 2023-603 **§319** requires every lot to abut at least 30 ft on a public street "or

an approved private street", and the checklist requires that "all components of private streets and alleys must meet minimum standards for public street". **The Association's maintenance covenant is what keeps 41 lots legally served.** A failure to maintain is not merely a nuisance; it undermines the lot frontage.

- Maintenance standard to be stated in the Declaration: keep the pavement in good repair; crack-seal on a

cycle not exceeding **7 years**; resurface on a cycle not exceeding **20 years** or when the pavement condition index falls below 70, whichever is first; maintain 13'-6" of vertical clearance by pruning limbs over the travelled way; keep the three hammerhead turnarounds and the entrance clear at all times; maintain "NO PARKING — FIRE LANE" signs on both sides (IFC 2024 (GA) Appendix D103.6) and the authority to tow.

- **No gates** (voluntary condition 6); no speed humps or other obstruction that would impede fire apparatus

without the written concurrence of the Gwinnett County Fire Marshal.

5.3 Sidewalks

14,619 SF of 5-ft walk in the lane tract and on the entry drive (`data/layout.json` `metrics.sidewalk_sf`; a walk on the northeast side of the whole lane, a second walk on the southwest side from u = 530 ft where the strip first gives that half-section its full 11 + 2 + 5 = 18 ft), plus the Arcado Road frontage walk (voluntary condition 18). Maintenance: repair any vertical displacement of 1/4 in or more; maintain cross-slope; keep clear of vegetation; replace panels lifted by street-tree roots (the reserve schedule funds 25 percent panel replacement per 20-year cycle). The community is a 55+ community and the walks are its principal amenity; the standard should be written as an accessibility standard, not a cosmetic one.

5.4 Stormwater — the ponds, the recorded agreement and the sediment cycle

- **Ownership.** Both ponds sit on their own tracts owned by the Association, as the Site Development Plan

Review Checklist §11.i.1 requires ("Locate detention pond on its own parcel owned by developer or a property owner's association", citing Development Regulations 8.2.4.g).

- **The recorded agreement.** The **Storm Water BMP Maintenance Agreement** — with as-built hydrology, volume

certification, maintenance schedule, access easement, inspection report and an 18-month BMP maintenance bond — is recorded with the Clerk of Superior Court by the applicant (checklist §2.g.3). The Declaration must (a) recite it by book and page, (b) obligate the Association to perform it, and (c) prohibit any amendment of the Declaration that would leave it unperformed.

- **Access.** The 30-ft BMP access easement for a residential project, with a 15-ft graded access road at not more than 20 percent grade, kept cleared and grubbed (checklist §11.i.2 and .4), is a permanent Association obligation — including the obligation not to plant it closed.

- **Inspection cycle.** A written inspection by a qualified professional **annually**, and after any storm producing more than 2 in of rainfall in 24 hours; the report is filed with the City if the City asks and retained for not less than seven years. Budget line, §8.2: 2 ponds × $900/yr.
- **Sediment cycle.** Forebay hand-cleaning **annually to every 5 years**, and whenever accumulated sediment occupies more than 50 percent of the forebay volume; **full sediment removal from the pond bottom when accumulated sediment reduces the design storage volume by 10 percent, and in any event on a cycle not exceeding 10 years**. The basins were enlarged on 2026-09-03, when the disturbed area was recomputed at **7.54 acres** (it had been sized on 4.4): design storage is now **33,129 cf (Pond 1, 52 × 180 ft basin)** and **44,734 cf (Pond 2, 64 × 180 ft basin)** — **77,863 cf total**, at 6-ft depth and 3:1 side slopes (`data/layout.json` `ponds`, `stormwater`) — so the 10-percent trigger is roughly **3,300 cf** of sediment in Pond 1 and **4,500 cf** in Pond 2. Against a screening requirement of **75,410 cf** (7.541 disturbed ac × the Gwinnett County Stormwater Management Manual rate of 10,000 cf per disturbed acre, with the runoff-reduction volume taken as zero at concept stage), **77,863 cf provided is 103 percent of required**; if the 15,552-cf RRv credit in `data/dev-summary-derived.json` is allowed the requirement falls to 59,858 cf. The design PE's GCSWMM routing governs. The reserve schedule funds sediment removal at $18,000 per pond on a 10-year cycle, and the enlargement raises the volume the association will one day have to dredge by about 76 percent over the 44,218 cf this document carried at 43 lots.
- **Receiving water.** Discharge is to the existing swale and stream corridor only, never onto an adjoining yard (`docs/03` §6). The receiving stream is the Jackson Creek headwaters (GAR030701030315), on Georgia's 2024 §303(d) list, which is why the covenant should also prohibit the Association and Owners from discharging pool water, pressure-washing effluent or fertiliser-laden runoff into the buffer or the ponds.

5.5 Landscape, street trees and yard care

- **Yard care on every Lot** (voluntary condition 10): mowing, edging, trimming and blowing on the schedule in §8.2; shrub pruning, pre-emergent and mulch twice a year; leaf removal. The Owner keeps the right to plant within ACC guidelines but not to interfere with the service or to alter irrigation.
- **Street trees** at 40 ft on centre — **73 street trees** at full build-out, plus **10 trees and 10 shrubs** in the 10-ft landscape strip along the 237.62-ft Arcado Road frontage (checklist §6.j: one tree and one shrub per 25 lineal ft; 237.62 ÷ 25 = 9.5 → 10) and **2 parking-bay trees** (checklist §6.k: one tree per seven spaces, 12 spaces → 2). **85 trees in total** (`tools/hoa_budget.py`, from `data/layout.json`). **The street-tree count rose with the lane, not with the lot count** — it is measured along the travelled way, which is unchanged at 1,754 ft: one row at 40 ft on centre for the full length (1,754 ÷ 40 = 43) plus a second row over the reach that carries a walk on both sides, which now begins at u = 530 ft rather than the u ≈ 1,160 assumed at 43 lots ((1,754 – 530) ÷ 40 = 30). 43 + 30 = **73 street trees**, against 57 before (`data/layout.json lane.widen_both_sidewalks_from_u` = 530.0).
- **Warranty and replacement.** New planting is warranted by the Owner or contractor for 12 months from the certificate of occupancy, or a maintenance bond is provided (checklist §6.m); after the warranty the Association carries a replacement allowance (§8.2, 3 percent of the tree stock per year).
- **No removal.** No Owner may remove or top a street tree or a common-area tree; replacement is at the Association's direction and at the Owner's cost where the Owner caused the loss.

5.6 The reserve study requirement

The Declaration should **require** — not merely permit — that the Association:

1. obtain a **reserve study before the first conveyance of a Lot**, prepared by an independent reserve analyst, listing every component, its replacement cost, useful life and remaining life;
2. **update it at least every three years**, and after any casualty or major capital work;
3. **fund reserves at not less than the straight-line contribution** the current study computes, which is the method used in §8.3;
4. keep reserves in a **segregated account**, not available for operating expenses without a Board resolution recorded in the minutes and repayment within 24 months; and
5. disclose the reserve balance, the funding percentage and the study date in every resale certificate.

Georgia does not compel a property owners' association to fund reserves. That is exactly why the covenant must, and why a City that is being asked to rely on a private association to maintain a 1,754-ft street and two detention ponds for the next half-century should want to see this paragraph.

5.7 Utilities and lighting

Full-cutoff fixtures at 3000 K or less, mounted at not more than 14 ft with house-side shields facing the adjoining R-1 lots, and **no lighting on the pickleball courts** (voluntary condition 11). The Association pays the energy and maintains the fixtures (§8.2: 16 fixtures). **VERIFY** whether the fixtures are association-owned or supplied on the Georgia Power outdoor-lighting tariff; the answer moves one operating line and one reserve component.

5.8 Sanitary sewer — what the Association must *not* own

Voluntary condition 16 forecloses the option that would otherwise have been the association's largest and least predictable expense: "no private pump station, private force main, private gravity sewer, grinder pump or low-pressure sewer system shall be proposed or built", following the Gwinnett County Department of Water Resources *Standard Policy for Private Developments: Condominiums, Townhomes and Subdivisions* (rev. 9/2018), which allows private facilities "only … for commercial properties under single ownership within a development". The Declaration should carry that prohibition forward as a covenant, so that a future board cannot solve a service problem by taking a pump station onto the association's books. Every dwelling connects by gravity to a Gwinnett County main, and the county owns and maintains it.

The consequence for the budget is stated plainly in §8.5: this decision removes an O&M exposure that the 2026-08-29 adversarial review priced at **$30,000–$60,000 per year** — but it also creates the Phase-2 risk that §8.5 prices, because if the off-site gravity easement and the DWR capacity certification are not obtained, Phase 2 is not built and the association is 24 lots carrying the fixed costs of a 41-lot community.

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6. Article 7 — the NFPA 13D sprinkler covenant

6.1 What the sprinklers are, in code terms

State the posture precisely, because it changed on 2026-09-03 when the voluntary conditions were revised, and the package audit at `audit-2026-09-03/completeness.md` item M12 still describes the older position:

- At 41 dwellings the two-access requirement of **IFC 2024 Appendix D107.1**, as amended by **Ga. Comp. R. & Regs. 120-3-3-.04** (which raises the trigger to more than 120 dwelling units), **is not engaged**. The sprinklers are therefore **not** a required mitigation for the single point of access.
- The lane is a **1,754-ft dead end**, which under **IFC 2024 (GA) Appendix D103.4** (dead ends over 750 ft) requires the fire code official's special approval. The mitigation package presented for that approval is the one in `docs/08` Memo E: three 120-ft hammerhead turnarounds, a 22-ft clear lane with enforced no parking, hydrant spacing, and — offered voluntarily — sprinklers in every home.
- The sprinklers also halve the required fire flow under **IFC 2024 Appendix B §B105.1** (500 gpm with sprinklers against 1,000 gpm without), which matters on a ≈1,754-ft dead-end water main.
- Voluntary condition 5 offers the sprinklers **voluntarily** and provides a release: if the Gwinnett County Fire Marshal states in writing that they are unnecessary, the condition may be released by the Fire Marshal's written concurrence and City staff's approval without a further public hearing.

The design **appears consistent with** IFC 2024 (GA) Appendix D only if the Fire Marshal accepts the D103.4 special-approval package; nothing here asserts otherwise.

6.2 The covenant

[ATTORNEY REVIEW REQUIRED]. Outline:

1. **Installation.** Every Dwelling shall be equipped with an automatic residential sprinkler system designed and installed to **NFPA 13D**; the clubhouse is sprinklered as the building code requires.
2. **Non-removal.** No Owner or Occupant shall remove, disable, disconnect, cap, paint over, obstruct or render inoperative any sprinkler head, pipe, control valve, gauge or alarm; shall not close the control valve except for repair; and shall not modify the system except by a licensed contractor with prior ACC consent and a copy of the revised hydraulic calculation delivered to the Association.

3. **Maintenance.** The Owner shall maintain and test the system in accordance with NFPA 13D and the manufacturer's instructions, keep the space around each head clear, maintain heat in every space containing piping, and repair any damage promptly at the Owner's cost.
4. **Verification.** The Owner shall deliver a signed sprinkler-condition certificate to the Association **every two years**, on the same cycle as the biennial HOPA occupancy survey so that one mailing serves both. The Association has a right of entry on 48 hours' notice to inspect, and in an emergency without notice.
5. **Disclosure at resale.** The system, this Article and the maintenance obligation are disclosed in the resale package under §3.5.
6. **Remedy.** Notice, 30-day cure, self-help repair by the Association at the Owner's cost as a specific assessment secured by the O.C.G.A. §44-3-232 lien, and injunctive relief. A disabled system is a life-safety violation and should not be left to the fine schedule alone.
7. **Amendment lock and release.** Article 7 may not be amended or deleted except in the manner voluntary condition 5 provides — the Fire Marshal's written concurrence plus City staff approval — and never by owner vote alone.
8. **Insurance credit.** The Association should require Owners to notify their carriers; the sprinklers also support the association's own property and liability rating (§8.2).

7. Article 8 — architectural control, use and parking

7.1 The Architectural Control Committee

Three members, appointed by the Declarant during the period of Declarant control and by the Board thereafter; written application; decision within 30 days; **no application is deemed approved by the passage of time** — silence is a denial with a right of appeal to the Board — so that an inadvertent lapse can never authorise a second storey or a structure in the buffer. **[ATTORNEY REVIEW REQUIRED].** Written Architectural and Landscape Guidelines, amendable by the Board, subordinate to the Declaration and to the zoning conditions.

7.2 The three colour schemes and the distribution rule

Voluntary condition 8 fixes the palette; `docs/12` §09 91 13 ¶2.04 and `data/plans.json` `materials_by_scheme` fix the content:

Scheme	Field	Base	Trim	Roof
1 — Warm White	fiber-cement board-and-batten, warm white	stacked/ledge stone water table (30 in) and porch piers	soft white; 8×8 cedar posts and brackets	architectural asphalt shingle, weathered wood / charcoal
2 — Sage	fiber-cement lap, 6-in exposure, sage green	brick veneer water table (30 in), red-brown blend	soft white; 8×8 cedar posts	architectural asphalt shingle, charcoal
3 — Clay	fiber-cement lap, 6-in exposure, clay/beige	ledge stone water table, buff/tan	cream	architectural asphalt shingle, driftwood/brown

Distribution rule. No scheme shall be used on more than **40 percent of the Dwellings** — at 41 Dwellings that is 0.40 × 41 = 16.4, i.e. **16 Lots**; the distribution drawn in `docs/09` §4.2 puts the largest scheme on 14 — and **no two adjacent Lots** and **no two Lots directly opposite one another across the lane** shall carry the same scheme. The scheme is assigned at closing, recorded in the Association's records, and may be changed only to another approved scheme with ACC consent and repainting of the whole exterior. The Declarant delivers one quart of each colour per cottage to the Association as touch-up stock (`docs/12` §09 91 13 ¶2.05). Repaint cycle 8–10 years (`docs/12` §09 91 13 ¶2.03).

7.3 Massing and additions

- **One story only.** No second storey, no habitable attic, no dormer or roof alteration creating habitable space above the first floor, no increase in ridge height. Maximum ridge 24'-0" above finished grade (voluntary condition 3); as drawn on Sheets A-2.1 and A-2.2, Plan A "The Springbrook" is **17'-10" above the finished floor / 18'-6" above finished grade** and Plan B "The Laurel" is **19'-0" / 19'-8"** to the main gable ridge, and the clubhouse on Sheet A-3.0 is **20'-10" / 21'-6"** (finished floor 0'-8" above grade; the ridge heights on the plan sheets govern).
- **No accessory dwelling unit** of any kind — no garage apartment, basement apartment, guest cottage or separately rentable space, whether or not separately metered.
- **Detached accessory structures**: not more than one per Lot, not exceeding 120 SF, not exceeding 10 ft in

height, set back at least 5'-0" from any Lot line (Site Development Plan Review Checklist §4.m), with a 5-ft landscape strip (checklist §6.l), **and never within the Buffer Easement Area** (§4.3).

- **Garage recess preserved.** The front wall of the garage shall remain recessed **not less than 5'-0"

behind the front wall of the dwelling**, as Lilburn Zoning Ordinance 2023-603 Table 4.2 requires for front-loaded garages. No Owner shall enclose, convert or extend the garage forward, and the garage shall remain available for the parking of two vehicles. Garage doors shall be kept closed except when in use.

- **Front porch** not less than 6'-0" deep, covered, retained (voluntary condition 8); zero-step entries

retained.

- **No wall signs on any dwelling** (voluntary condition 8). The community's only sign is the single monument

entry sign, ≤ 32 SF and ≤ 6'-0" high, externally lit, permitted separately (voluntary condition 14).

- Solar collectors: permitted only on rear-facing roof planes, flush-mounted, with ACC consent.

[ATTORNEY REVIEW REQUIRED] — VERIFY whether any Georgia statute limits an association's authority over solar installations before the guideline is written as a prohibition.

- Antennas and flags: the guidelines must accommodate 47 C.F.R. §1.4000 (over-the-air reception devices) and

the Freedom to Display the American Flag Act of 2005.

7.4 Parking — the rule the fire code depends on

- **No parking on the lane at any time.** The lane pavement is 22'-0" wide; IFC 2024 (GA) Appendix D103.6

requires "NO PARKING — FIRE LANE" signs on both sides of a 20–26-ft fire apparatus access road, and the 22-ft width is only defensible to the Fire Marshal if it is genuinely kept clear. The Association shall maintain the signs and **shall** enforce, including by towing at the vehicle owner's expense after posted notice. **[ATTORNEY REVIEW REQUIRED]** — Georgia's private-property towing requirements (signage content, placement, notice and the towing company's licensing) must be satisfied or the tow is unlawful.

- **On-Lot parking.** Two garage spaces plus two driveway spaces per Lot; the garage door stands **26'-8"**

from the lot line so that two cars park on the driveway without overhanging the sidewalk (`data/plans.json lot_siting.garage_door_from_lot_line_ft` = 26.67). Total on-Lot parking **164 spaces** (4 × 41) against the **82** required by Lilburn Zoning Ordinance 2023-603 Table 8.1 (2 per dwelling unit) — `data/layout.json` `metrics.parking_required` and `parking_provided_on_lot`.

- **Guest parking.** 12 spaces at the amenity block (8 guest + 4 at the mail kiosk); a 72-hour limit, no

storage parking, no overnight commercial vehicles.

- **Prohibited**: boats, recreational vehicles, trailers, commercial vehicles over 3/4 ton or bearing

commercial lettering, inoperable or unregistered vehicles, and vehicle repair other than emergency repair, anywhere on a Lot outside a closed garage.

7.5 Other use restrictions to be drafted

Residential use only; no home occupation with customer or employee traffic; leasing rules per §3.5; refuse containers stored inside the garage except on collection day; no clothes lines visible from the lane; pets limited in number and under leash, with waste rules; nuisance, noise and light provisions; no fences on any Lot except a decorative fence not exceeding 4'-0" in height approved by the ACC and never within the Buffer Easement Area (checklist §4.n); holiday decoration timing; and the construction-period rules that carry voluntary condition 12 (exterior construction 7:00 AM–7:00 PM Monday–Friday, 8:00 AM–5:00 PM Saturday, none on Sundays or federal holidays).

8. Article 9 — assessments, and the annual budget

8.1 Basis and method

This is the answer to the question the package could not answer before: **what does this association actually cost to run?** The budget below is built from the bottom up. Every quantity is read at run time from `data/layout.json` and `data/plans.json` by `tools/hoa_budget.py`; every unit price is a named planning allowance with the benchmark it came from; the reserve contribution is computed component by component from replacement cost divided by useful life. Nothing is a percentage of a guess.

Method notes.

- **Straight-line (component) reserve funding**, with **no** interest earnings and **no** inflation offset assumed. That is deliberately conservative: interest on the reserve balance would reduce the required contribution, and inflation would increase it, and the two are left to cancel until a real reserve analyst models them (§5.6).
- **5 percent operating contingency**, applied to the operating subtotal only, because this is a first-year budget for a community that does not yet exist and no line has a quotation behind it.
- **2 percent delinquency allowance**, applied to the sum of operating, contingency and reserves. The O.C.G.A. §44-3-232 lien makes eventual recovery likely but the budget cannot spend a receivable.
- Costs are **2026 dollars at full build-out**, all 41 Dwellings complete and occupied. §8.4 handles the build-out years and §8.5 the downside cases.
- Every line is marked **VERIFY**: none of these prices is a quotation. Three bids per contract before the first budget is adopted.

8.2 Quantities the budget is built on

Reproduced verbatim from `verify/hoa-budget-output.md`, the raw output of `tools/hoa_budget.py`, re-run 2026-09-03 against the 41-lot layout.

Quantity	Value	Source
Lots	41	`layout.json` metrics.lots
Plan mix	21 A / 20 B	`layout.json` lots
Lane length (entrance to terminus)	1,754 ft	metrics.lane_length_ft
Lane + entry pavement	48,430 SF	metrics.pavement_sf (polygons compute 48,430 SF)
Sidewalk	14,619 SF	metrics.sidewalk_sf (polygons compute 14,619 SF)
Lane tract, less pavement and walk (verge)	8,036 SF	tract – pavement – sidewalk
Front amenity tract	46,777 SF, of which 8,262 SF built/paved	metrics + amenity polygons
Greens (3 tracts)	29,312 SF	`layout.json` greens
Pond tracts	40,000 SF (2 ponds, 20,970 SF of basin)	open_space_tracts, ponds
Creek woods (preserved)	20,000 SF	open_space_tracts
Buffer easement inside lots	41,000 SF	metrics.buffer_easement_on_lots_sf
Maintained common landscape	115,863 SF = 2.66 ac	verge + amenity soft + greens + pond tracts
Undisturbed natural area	61,000 SF = 1.40 ac	creek woods + buffer easement
Maintained yard per lot	Plan A 1,365 SF / Plan B 1,220 SF (avg 1,294 SF)	5,000 SF – plans.json lot_siting impervious – 1,000 SF buffer
Street trees / total trees	73 / 85	40 ft o.c. + frontage strip + parking bay
Light fixtures	16	150 ft o.c. + 4 at the amenity block (assumption)

8.3 Line-item annual budget — full build-out, 41 lots

Line	Quantity (from `data/layout.json` / `data/plans.json`)	Unit cost	Annual
1 Grounds			
Lot yard care — mow, edge, trim, blow	41 lots × 34 visits	$22/lot/visit	$30,668
Lot beds — pruning, pre-emergent, mulch, leaf removal	41 lots × 2 visits	$120/lot/yr	$4,920
Common-area turf and beds (lane verge, greens, amenity, pond tracts)	2.66 ac	$4,500/ac/yr	$11,970
Buffer easement and creek-woods stewardship (undisturbed areas)	1.40 ac	$900/ac/yr	$1,260
Street- and strip-tree pruning (3-year cycle, annualised)	85 trees ÷ 3	$65/tree	$1,842
Tree, shrub and turf replacement (3 % of stock per year)	85 trees × 3 %	$450/tree	$1,148
Irrigation operation, backflow testing and repair (amenity block)	1 system	$1,400/yr	$1,400
2 Lane and stormwater			
Lane sweeping and gutter cleaning	2 events/yr	$650/event	$1,300

Line	Quantity (from `data/layout.json` / `data/plans.json`)	Unit cost	Annual
Pavement crack fill and pothole patching (operating)	48,430 SF	$0.05/SF/yr	$2,422
Fire-lane and traffic signs, pavement markings	lane inventory	$900/yr	$900
Storm inlet, pipe and outlet-structure cleaning	1 vacuum-truck day	$1,400/yr	$1,400
Pond annual inspection and report to the City	2 ponds	$900/pond/yr	$1,800
Pond routine maintenance (racks, forebay, rip-rap, erosion)	2 ponds	$1,300/pond/yr	$2,600
Lane and common lighting — energy and fixture maintenance	16 fixtures × 12 mo	$23/fixture/mo	$4,416
Snow and ice event allowance	0.5 event/yr	$600/yr	$600
3 Amenity			
Clubhouse electricity	2,400 SF	$1.85/SF/yr	$4,440
Clubhouse water and sewer, amenity irrigation water	1 meter	$2,600/yr	$2,600
Clubhouse gas	1 service	$700/yr	$700
Clubhouse janitorial and supplies	104 visits/yr	$65/visit	$6,760
Clubhouse repairs, HVAC contract, pest, alarm and NFPA 13 sprinkler ITM	1 building	$3,900/yr	$3,900
Internet, cameras, access control, Knox box	1 building	$1,700/yr	$1,700
Pickleball court cleaning, nets and screens	2 courts	$900/yr	$900
Mail kiosk cleaning, lighting and locks	1 kiosk	$500/yr	$500
4 Administration			
Professional community management	41 doors × 12 mo	$22/door/mo	$10,824
HOPA age-verification program (biennial survey, transfer certificates, records)	41 units ÷ 2 yr + 3 transfers	$18/unit + $150/transfer	$1,719
Insurance — property, GL, D&O, crime, umbrella	41 units + clubhouse	$13,500/yr	$13,500
Financial review and Form 1120-H	1/yr	$1,600/yr	$1,600
Legal — counsel and covenant enforcement	allowance	$2,500/yr	$2,500
Reserve study (update every 3 years, annualised)	1 ÷ 3 yr	$3,500/study	$1,167
Banking, software, portal, postage, meetings, state registration	1/yr	$1,900/yr	$1,900
Operating subtotal			**$123,356**
Operating contingency, 5 %			$6,168
Reserve contribution (schedule below)			**$40,451**
Delinquency allowance, 2 % of assessments			$3,399
TOTAL ANNUAL BUDGET			**$173,374**
Per lot per year (41 lots)			**$4,229**
Per lot per month			**$352**

Reserve component schedule (the reserve contribution above is the sum of the annual column):

Component	Qty	Unit	Unit cost	Replacement cost	Life (yr)	Annual	Basis
Lane and entry-drive asphalt — mill and overlay	48,430	SF	$4	$193,720	20	$9,686	overlay $3.50–5.50/SF and mill-and-overlay $4.50–8.00/SF in 2026 (Buildcalchub; Wright Construction; Paving Estimator); $4.00 assumes a single mobilisation for the whole lane
Lane crack sealing and surface treatment	48,430	SF	$0.30	$14,529	7	$2,076	crack seal + fog/seal coat between overlays
Concrete sidewalk — 25 % panel replacement per cycle	3,655	SF	$9	$32,895	20	$1,645	4-in walk removal and replacement; 25 % of panels per 20-year cycle (root heave, settlement, ADA cross-slope corrections)
Curb, gutter and valley-gutter repair allowance	1,754	LF	$4	$7,016	25	$281	10 % of the curb line replaced per 25-year cycle at ~$40/LF

Component	Qty	Unit	Unit cost	Replacement cost	Life (yr)	Annual	Basis
Detention pond sediment removal	2	pond	$18,000	$36,000	10	$3,600	dry basins of 0.24 ac each holding 77,863 cf between them (2026-09-03 re-sizing); Southeast stormwater dredging $25–75/CY and $25,000–75,000 for a half-acre HOA pond (Angi 2026; AUE Land; Landshore 2026) — the allowance predates the enlargement and is to be re-priced before the first reserve study
Pond outlet structures, trash racks, rip-rap, emergency spillway	2	pond	$12,000	$24,000	30	$800	outlet control structure and headwall rehabilitation
Storm sewer pipe and structure rehabilitation	1,754	LF of lane	$68.50	$120,149	50	$2,403	lane storm drainage — pipe, inlets and junction boxes at end of service life, priced per foot of lane so the Phase-1 case scales
Clubhouse roof — architectural asphalt shingles	3,000	SF	$6.50	$19,500	25	$780	clubhouse footprint × 1.25 slope factor; tear-off and replacement
Clubhouse HVAC (2 split systems)	2	each	$11,000	$22,000	15	$1,467	3-ton systems, replacement including duct repairs
Clubhouse exterior repaint	1	LS	$9,000	$9,000	8	$1,125	docs/12 §09 91 13 2.03 sets the HOA repaint cycle at 8–10 years
Clubhouse interior — flooring, paint, kitchen, restrooms, furnishings	1	LS	$60,000	$60,000	15	$4,000	$25/SF of clubhouse for finishes and FF&E
Clubhouse water heater, appliances, fitness equipment	1	LS	$14,000	$14,000	12	$1,167	allowance
Pickleball court resurfacing	2	court	$8,000	$16,000	6	$2,667	acrylic resurface of a 30' × 60' pad; 5–8-year cycle
Pickleball fencing	360	LF	$28	$10,080	20	$504	4-ft black vinyl-coated chain link on the pad perimeter
Lane and amenity light poles and fixtures	16	each	$3,800	$60,800	25	$2,432	14-ft full-cutoff post-top ≤3000 K (voluntary condition 11); assumes association-owned fixtures — if they are on the Georgia Power tariff this component drops out
Mail kiosk — cluster box units and shelter	1	LS	$28,000	$28,000	25	$1,120	4 USPS-approved CBUs at ~$2,600 plus a 16' × 10' shelter (checklist §4.r, 'protection from the elements')
Monument entry sign, wall and landscape lighting	1	LS	$28,000	$28,000	20	$1,400	≤32-SF monument sign (voluntary condition 14), masonry base, external lighting
Site furnishings — benches, tables, trash receptacles, kiosk board	1	LS	$16,000	$16,000	15	$1,067	village green and pocket greens
Irrigation system replacement (amenity block)	1	LS	$18,000	$18,000	20	$900	controller, valves, heads and mainline
Landscape renovation and buffer re-planting fund	1	LS	$20,000	$20,000	15	$1,333	periodic renovation of common beds and the supplemental evergreen buffer planting; also the fund behind the re-planting remedy in Article 6 of the declaration
Total annual reserve contribution						**$40,451**	straight-line component method, no interest or inflation offset

Optional line not included in the total above. A bundled residential solid-waste contract — one hauler, one truck a week on a private lane, instead of 41 separate subscriptions — would cost about **$22.00 per home per month = $10,824 per year**, taking dues to **$374 per lot per month**. Whether to buy refuse collection as a community is a Board decision, and **VERIFY** whether the City's residential collection arrangement serves private streets at all.

8.4 What each Owner pays, and how the money is collected

Item	Amount	Note
Annual assessment per Lot	**$4,229**	$173,374 ÷ 41 Lots; every Lot is 5,000 SF, so an equal per-Lot share is the defensible allocation

Item	Amount	Note
Monthly assessment per Lot	**$352**	$4,229 ÷ 12, of which $250.72 operating ($123,356 ÷ 41 ÷ 12), $82.22 reserves ($40,451 ÷ 41 ÷ 12), $12.54 contingency ($6,168 ÷ 41 ÷ 12) and $6.91 delinquency allowance ($3,399 ÷ 41 ÷ 12)
Initial capital contribution at each closing, including resales	2 × the monthly assessment = **$704**	paid to reserves and working capital; **not** an advance of dues
Special assessment	Board may levy up to one monthly assessment per year without a vote; anything larger requires member approval	**[ATTORNEY REVIEW REQUIRED]** — the threshold and the vote must track the POA Act
Late charge, interest, costs and attorney's fees actually incurred	per the Bylaws	O.C.G.A. §44-3-232
Statement of amounts due on request	within **5 business days**, or the lien is extinguished as to the requesting party	O.C.G.A. §44-3-232

What the drop from 43 lots to 41 did to the dues. The total annual budget fell only **$931**, from $174,305 to **$173,374** — 0.53 percent — while the number of Lots paying it fell 4.65 percent. The arithmetic, line by line:

Component	43 lots	41 lots	Change	Why
Operating — the four per-Lot lines (yard care, lot beds, management, HOPA administration)	$50,413	$48,131	–**$2,282**	these are the only operating lines that scale with the Lot count
Operating — everything else	$74,607	$75,225	**+$618**	tree pruning and replacement (69 → 85 trees, +$564) and pavement crack fill (46,466 → 48,430 SF, +$99), less buffer stewardship (1.45 → 1.40 ac, –$45)
Operating subtotal	**$125,020**	**$123,356**	–**$1,664**	
Reserve contribution	$39,616	$40,451	**+$835**	asphalt overlay and crack seal on 1,964 SF more pavement (+$478) and sidewalk panel replacement on 3,655 SF of walk instead of 2,860 (+$358)
Contingency (5 %) and delinquency allowance (2 %)	$9,669	$9,567	–$102	percentages of the lines above
Total annual budget	**$174,305**	**$173,374**	–**$931**	

The denominator fell 4.65 percent and the numerator fell 0.53 percent, so the dues rose $14, from $338 to $352 per Lot per month — a 4.1 percent increase, and $4,229 instead of $4,054 a year. This is the plainest statement of what the two lost lots cost, and it should be disclosed rather than buried: two fewer homes now carry a slightly longer-walked, slightly wider-paved lane and two basins that hold 77,863 cf instead of 44,218. (The enlarged basins do not themselves raise the budget — sediment removal is priced per pond, not per cubic foot — but they will cost more to dredge than the $18,000-per-pond allowance assumes, which is open item 12 in §10.)

Build-out years. Until all 41 Lots are conveyed the assessments do not cover the budget, because the common property is complete long before the last home sells. Two structures are conventional and the Declaration must pick one — **[ATTORNEY REVIEW REQUIRED]**:

- **(a) Declarant deficit funding (recommended).** The Declarant pays the difference between assessments

actually collected and actual expenses, month by month, until the last Lot is conveyed or Declarant control ends. Simple, transparent, and it protects the reserve schedule from day one.

- **(b) Reduced assessment on unsold Lots.** The Declarant pays 25 percent of the full assessment on Lots it

owns. Cheaper for the Declarant, but it starves reserves in exactly the years when the asphalt is quietly aging, and buyers' lenders scrutinise it.

Whichever is chosen, the **reserve contribution should be funded at 100 percent from the first month**, and the Declarant should deliver the initial reserve study before the first closing (§5.6).

8.5 Sensitivities the Board and the City should see

Case	Annual budget	Per Lot per month	Why
Full build-out, 41 Lots — the published figure	**$173,374**	**$352**	§8.3

Case	Annual budget	Per Lot per month	Why
Phase 2 not built (voluntary condition 16 not satisfied) — 24 Lots carrying the amenity, the entry, one pond and the front 1,000 ft of lane	**$129,291**	**$449**	the same generator run at `phase1`; Phase 1 is Lots 1–10 and 15–28, Phase 2 the remaining 17
Full build-out with bundled refuse collection	$184,198	$374	§8.3 optional line
Pavilion and green instead of a 2,400-SF clubhouse	≈ $143,000–$151,000	≈ **$291–$307**	the clubhouse carries **$20,100** of operating cost (electricity $4,440 + water and sewer $2,600 + gas $700 + janitorial $6,760 + repairs, HVAC, pest, alarm and sprinkler ITM $3,900 + internet, cameras and access control $1,700) and **$8,539** of reserve funding (roof $780 + HVAC $1,467 + repaint $1,125 + interior and FF&E $4,000 + water heater, appliances and fitness $1,167); a pavilion removes most but not all of it. Hand-computed from §8.3, not a generator run. A design decision, not a budgeting one — and it is the cheapest single lever on the dues figure

The **Phase-2 case is the important one**. Voluntary condition 16 is honest about it — if the off-site gravity easement and the Gwinnett DWR capacity certification are not obtained, Phase 2 is not built. The association then has 24 Dwellings paying for a clubhouse, two pickleball courts, an entry drive, a monument sign, a mail kiosk and a detention pond that were all sized for 41. **$449 per month is a marketable number for a 55+ cottage only if it is disclosed before the first contract, not discovered after.** The Declaration and the sales documents should carry the two-column budget, not one.

8.6 How this compares, and what the package should now carry

Community	Dues	Comparability
Annsbury Park, Lilburn (140 R-2 cottage lots)	≈ $104/mo	**no yard care**, public streets, minimal amenity
Cottages at Noble Village, Lilburn (55+)	$93–$280/mo	Lilburn's only 55+ product; smaller amenity
Saddlebrook, Snellville (55+, ≈130 homes)	$192–$257/mo	detached 55+, yard care, larger community to spread fixed costs
The Cottages at Arcado Springs (41 Lots)	**$352/mo**	yard care on every Lot, a 1,754-ft private street the association owns and repaves, two detention ponds, a clubhouse, HOPA administration
Soleil Summit Chase, Snellville (55+, 265 homes)	$360–$389/mo	full amenity, but 265 homes carrying it

The figure is where the arithmetic says it should be: above the communities with public streets or no yard care, below the large-amenity community, and — the point a 41-lot community cannot escape — **high per home because 41 homes is a small denominator for a private street and two ponds**. The 2026-09-03 loss of two lots made that worse, not better, by $14 a month (§8.4).

Reconciliation with the rest of the package.

Source	Figure	Disposition
`docs/02-development-summary.md` §8.2, as first written	"Estimated dues **$200–$350/month** (VERIFY by budget)"	**Superseded.** A placeholder carrying an explicit instruction to replace it with a budget. This is that budget.
`docs/02-development-summary.md` §8.2, as revised 2026-09-03	the $200–$350 range is "**not** supported by a budget"; a 1,754-ft private lane, two ponds, a 2,400-SF clubhouse, yard care for every Lot, insurance, management and the HOPA programme are "more consistent with **$300–$400 per lot per month**"; "a line-item budget is to be published in the HOA/HOPA covenant outline rather than a range"	**Answered.** The revision was right to retire the range and right about the band. The line-item figure it asks for is **$352**. `docs/02` §8.2 should now read **"$352 per Lot per month at full build-out (41 Lots), 2026 dollars — $173,374 per year, computed line by line in `docs/13` §8 by `tools/hoa_budget.py`; $449 per month if Phase 2 is not built."**
2026-08-29 adversarial review, `status/plan-judgment-2026-08-29/judges/cottage-plan-critic.md`	"≈ $200k/yr = $300–400/lot/mo"	**Confirmed in band, refined.** The bottom-up total is $173,374, about 13 percent below the reviewer's order-of-magnitude $200k, and $352 sits inside the $300–400 range. The reviewer's underlying point stands: a $352 assessment on a cottage priced at $420,000–$460,000 (`data/dev-summary-derived.json` `price_lo` / `price_hi`) is roughly $1,000 a month of carrying cost before taxes and insurance, and it is a real constraint on absorption.
`docs/10-submittal-checklist-and-roadmap.md`	cites this section rather than restating a number	Correct as written; keep it that way.

One figure, everywhere: $352 per Lot per month at full build-out (41 Lots); $449 if Phase 2 is not built. Any document in this package that states a dues range should be corrected to that pair, with the year (2026 dollars) attached, because a dues figure without a date is a promise no one can keep.

9. Recording sequence, declarant control and transition

9.1 Sequence

Step	What is recorded or filed	When	Why in this order
1	Nothing. Declaration outline (this document) and draft HOPA Policies accompany the Letter of Intent	With the rezoning application	Shows the City the enforcement mechanism exists before it votes
2	Zoning conditions adopted by the Mayor and City Council	At the Council hearing	The conditions are the source; the covenants implement them
3	**Title consolidation.** The four parcels are conveyed to a single Declarant entity — PINs R6123 033 and 015 (Awad) and R6123 014 and 162 (Mendez and Roblero de Leon)	Before the land disturbance permit	A declaration can only be recorded by every record owner, or by one owner after the assemblage closes. **This is a gate, not a formality.**
4	Articles of Incorporation filed with the Georgia Secretary of State	Before the Declaration	The Association must exist to take the Common Property
5	**Final plat**, creating 41 Lots and the Common Property tracts, dimensioning the 20'-0" buffer easement on every Lot, labelling the lane "Private", showing the BMP access easement, the stream buffers and the maintenance-responsibility note (checklist §4.o, §4.s)	After LDP approval	The Declaration describes Lots by plat reference, so the plat is recorded first
6	**Declaration of Covenants, Conditions, Restrictions and Easements**, with the Bylaws attached, submitting the property to the POA Act, and any mortgagee's Consent and Subordination	Immediately after the plat — **and, per the voluntary condition, before the first building permit and before the first Lot is conveyed**	Every Owner then takes title subject to Articles 4, 5, 7 and 8; no joinder is ever required
7	**Storm Water BMP Maintenance Agreement** with as-built hydrology, volume certification, maintenance schedule, access easement, inspection report and 18-month bond, recorded with the Clerk of Superior Court	At the Certificate of Development Conformance stage — "at least 3 weeks prior to Final Plat or 1st Certificate of Occupancy" (checklist §2.g)	The Declaration recites it by book and page
8	**Off-site sanitary sewer easement** for the Phase-2 gravity connection	Before the Phase-2 land disturbance permit (voluntary condition 16)	Phase 2 cannot proceed without it
9	**Supplemental Declaration annexing Phase 2** (or, if condition 16 is not satisfied, no annexation and the Phase-2 area stays wooded or is re-platted as open space)	At the Phase-2 final plat	The Declaration must reserve the annexation right **and must work if the right is never exercised**
10	Deeds, each reciting the Buffer Easement and the 55+ restriction	At each closing	Factor (a)(4) of 24 CFR §100.306

9.2 Who the Declarant is

[ATTORNEY REVIEW REQUIRED] and VERIFY. As of 2026-09-03 title is split: R6123 033 and R6123 015 are held by Awad, and R6123 014 and R6123 162 by Mendez and Roblero de Leon. The Declaration must be executed by a single Declarant that holds all four parcels, or by all record owners jointly. The cleanest structure is a Georgia limited liability company formed to take title at the assemblage closing, which then becomes Declarant. The rezoning application itself faces the same signature problem (`docs/07`), and it should be solved once, for both.

9.3 Declarant control and transition

- **Class B membership** in the Declarant, terminating on the **earliest** of: (a) conveyance of **75 percent**

of the Lots to Owners other than the Declarant; (b) **7 years** after the first Lot is conveyed; or (c) the Declarant's written election. **[ATTORNEY REVIEW REQUIRED]** — the trigger must also work in the Phase-2 downside case, where 41 Lots may never exist; express the percentage against Lots *created*, not Lots *planned*.

- **Turnover package** delivered at transition: minute books, the Occupancy Register and every HOPA record,

the reserve study and reserve account, as-built drawings and the recorded BMP Maintenance Agreement, all warranties and bonds, the sprinkler documentation for every Dwelling, contracts, insurance policies, and a **transition financial review** by an independent accountant at the Declarant's cost.

- **Declarant covenant.** The Declarant remains liable for deficits accrued during its control and for the

completion of the Common Property, and those obligations survive transition.

9.4 What the City should make a condition, and what it should leave to the covenants

Make it a zoning condition (City-enforced, amendable only by the Council)	Leave it to the covenants (Association-enforced, amendable by owners)
55+ operation under 42 U.S.C. §3607(b)(2)(C) and 24 CFR §§100.304–100.308, with the annual letter to the Planning Director	The survey form, the affidavit wording, the fine schedule, the guest policy
Maximum 47 Dwellings; detached single-family only	Lot-by-lot plan assignment
One story, ridge ≤ 24 ft	Interior finishes, landscaping choices
The 20-ft buffer, held in a recorded easement naming the City, with the City's consent required for any amendment	The re-planting species list, the invasive-management plan
The single disclosed buffer reduction at the southwest curb return, and no other	—
NFPA 13D in every Dwelling, releasable only on the Fire Marshal's written concurrence	The biennial owner certificate mechanics
One entrance, no gate, no Arcado Road driveways	Guest-parking time limits, towing contractor
Stream buffer preserved in a common tract	Trail or seating in the greens
Private lane and all common property maintained by a mandatory association that may not be dissolved without the City's consent	Dues, budget, reserve percentage, contractor selection
Gravity sewer only, no private pumping; capacity certification before Phase 2	—
Recording of the Declaration before the first building permit	Everything else

The distinction that matters: **the City should hold the promises it would want to enforce if the association failed**, and nothing else. Conditions that reach into the association's housekeeping are unenforceable in practice and give the Council a false sense of control.

10. Attorney redline checklist and open items

For counsel, in order of consequence.

1. **Submit the property to the POA Act** (O.C.G.A. §44-3-220 et seq.) expressly, and confirm that O.C.G.A. §44-3-234 gives the 55+ restriction and the buffer easement perpetual duration notwithstanding O.C.G.A. §44-5-60. If this is wrong, everything else is decoration.
2. **Choose the buffer instrument** — restrictive covenant and easement in gross, or a conservation easement under O.C.G.A. §44-10-1 to §44-10-8 — and draft the City's third-party enforcement right and the amendment lock so that they survive a future 67 percent owner vote (§4.2, §4.7).
3. **Draft the HOPA package to the four sections**: §100.304 (the exemption), §100.305 (80 percent, the fractional-unit rule, the 25-percent new-construction start), §100.306 (published policies, posting, advertising vocabulary), §100.307 (procedures, documentation, the two-year update, the summary available for inspection). Confirm the Georgia Fair Housing Act analogue (O.C.G.A. §8-3-200 et seq.) adds nothing further.
4. **The under-19 permanent-occupancy rule** and its reasonable-accommodation carve-out (§3.2 item 4).
5. **Inheritance, surviving spouse and the twelve-month sell-or-lease clock** against Georgia probate practice and year's support (§3.6).
6. **Leasing restrictions** adopted in the original Declaration rather than by later amendment (§3.5 item 6).
7. **Fining and towing procedure** — notice, hearing, and Georgia's private-property towing requirements (§3.7, §7.4).
8. **Non-forfeiture clause** so that a transfer in breach of Article 4 is a personal violation and never a title defect (§3.5 item 5).
9. **Mortgagee protections** and secondary-market eligibility (Fannie Mae, FHA and VA project standards for an age-restricted PUD), which interact with the leasing cap, the declarant-control period and the reserve funding level.
10. **Declarant identity and joinder** (§9.2) — the four-parcel title split is a gate for both the application and the Declaration.
11. **The Phase-2 contingency** written into Articles 2, 6 and 9 so that a 24-Lot community is governable and the budget in §8.5 is disclosed to buyers.

12. **Reserve covenant** (§5.6) — a Georgia association is not required to fund reserves; this Declaration must require it.

Open items — VERIFY before recording.

#	Item	Who resolves it
1	Which O.C.G.A. section carries the Georgia Fair Housing Act older-persons exemption, and whether its terms differ from 24 CFR Part 100 Subpart E	Counsel
2	Whether the lane lighting is association-owned or on the Georgia Power outdoor-lighting tariff (moves one operating line and one reserve component)	Declarant + Georgia Power
3	Whether the City's residential solid-waste arrangement serves private streets	City of Lilburn
4	Gwinnett DWR confirmation that the Phase-2 gravity route is certifiable (voluntary condition 16)	Declarant + DWR
5	The Gwinnett County Fire Marshal's written position on the IFC 2024 (GA) Appendix D103.4 special approval, and whether the voluntary sprinkler condition is released	Declarant + Fire Marshal
6	Every unit price in §8 replaced by three written quotations before the first budget is adopted	Declarant + manager
7	The initial reserve study, by an independent analyst, before the first conveyance	Declarant
8	Insurance quotations — the $13,500 allowance is a benchmark midpoint, not a bound quote	Declarant's broker
9	Confirmation that voluntary condition 5's sprinkler release mechanic is acceptable to the City Attorney as a condition that can be lifted administratively	City Attorney
10	Whether the City will accept the annual HOPA certification letter (§3.8) as the reporting mechanism for condition 1	Planning Director
11	**CLOSED 2026-09-03.** `data/voluntary-conditions.md` (generated from `docs/02` §9) was conformed to the 41-lot layout: condition 1 now reads 33 of 41 with a cushion of 8 (§3.1), condition 2 "41 shown", condition 4 the 18'-0" residual buffer (§4.4), condition 5 "at 41 units", condition 8 the settled sheet register, condition 9 the new stream-setback tract, and condition 15 the u ≈ 980-ft phase line with 24 and 17 lots. **Re-read the conditions against this outline before the Declaration is drafted** — this document's Article 4, 5, 7 and 8 outlines are written to the conformed text	Owner + counsel
12	**Pond sediment-removal allowance.** The reserve schedule prices dredging at $18,000 per pond, a figure set when the basins held 44,218 cf between them. They now hold **77,863 cf** at 6-ft depth (§5.4). Re-price before the first reserve study is adopted	Declarant + reserve analyst
13	Whether `data/layout.json` `metrics.pavement_sf` (48,430 SF) should be published as the pavement quantity for reserve purposes, given that it includes the 2,070 SF of guest and mail-kiosk bays and the 184 SF of entrance curb returns as well as the lane, entry drive and hammerhead legs	Declarant + PE

11. Status

DRAFT — NOT SEALED. This outline is owner-prepared. It is not legal advice, it is not a declaration, and no part of it should be recorded. The Declaration, Articles, Bylaws and HOPA Policies must be drafted, and this outline redlined, by a Georgia land-use or community-association attorney; the reserve study must be prepared by an independent reserve analyst; the stormwater maintenance schedule must be sealed by a Georgia Professional Engineer; and every unit price in §8 must be replaced by a quotation before the first annual budget is adopted.

> ***Disclaimer:*** *This is an AI-generated analysis for preliminary planning purposes. All findings must be verified by a licensed professional before use in design, permitting, or regulatory submissions.*